

Afzal Khan v. State of U.P.

Allahabad High Court · Division Bench · 9 April 2025 · 2025:AHC:52041-DB · Writ-C No. 10303 of 2025 · **Writ disposed; recovery withdrawn; hearing and reasoned order in eight weeks.**

HEADNOTE

On the licensee's withdrawal of the recovery certificate and issue of a fresh hearing notice, the writ seeking final assessment under clauses 6.8 and 8.1 was disposed with a direction to hear the consumer and pass a reasoned order in accordance with law within eight weeks.

FACTUAL SUMMARY

Afzal Khan invoked Article 226 seeking a mandamus to complete final assessment and pass a final order under clauses 6.8 and 8.1 of the Electricity Supply Code, 2005, on the strength of an order dated 28 January 2025, and certiorari to quash a recovery certificate dated 15 May 2024. Counsel for the distribution licensee told the Court that the impugned recovery certificate had been withdrawn and that a fresh notice, fixing a date of hearing, had been issued to the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

hearing before final assessment

HOLDING

Where the licensee withdraws the recovery certificate and issues a fresh notice fixing a hearing, a writ seeking final assessment under clauses 6.8 and 8.1 is disposed of with a direction to grant the consumer an opportunity of hearing and thereafter pass a reasoned order in accordance with law within eight weeks. ¶ 3-4

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uee-conclusion

On the licensee's withdrawal of the recovery certificate and issue of a fresh hearing notice, the writ seeking final assessment under clauses 6.8 and 8.1 was disposed with a direction to hear the consumer and pass a reasoned order in accordance with law within eight weeks. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF FINAL ASSESSMENT UNDER CLAUSES 6.8 OR 8.1, AND VALIDITY OF THE RECOVERY CERTIFICATE

Recovery was withdrawn by the licensee; the Court directed hearing and a reasoned order without choosing between the clauses or deciding the bill. ¶ 3-4